

25CHLC07758 25CHLC07758

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-08-04

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C25%2C08%2F04%2F2026

Source SHA-256: 74a98e13b094e5c2ef05398e47bffdafb68b23e5943a37efcb7ec053d0dc0e15

Case Number: 25CHLC07758 Hearing Date: August 4, 2026 Dept: 25

HEARING DATE: Tues., August 4, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Wicked

Good Films LLC v. The Fabulous Group, Inc., et al.

COMP. FILED: 02-24-25

CASE NUMBER: 25CHLC07758

NOTICE: OK

PROCEEDINGS: MOTION

TO VACATE VOID JUDGMENT (CCP § 473(d)); MOTION TO QUASH / PROTECTIVE ORDER

MOVING PARTY: Defendant Kevin T. Van Belois

RESP. PARTY: None

MOTION TO

SET ASIDE DEFAULT JUDGMENT

(Code Civ. Proc., §§ 473(d))

TENTATIVE RULING:

The Court

DENIES Kevin T. Van Belois's motion to vacate the default entered against him and to quash or for a protective order.

Wicked Good Films LLC is to give notice.

SERVICE:

[X] Proof of

Service Timely Filed (CRC, rule 3.1300) OK

[X] Correct Address

(CCP §§ 1013, 1013a) OK

[X] 16/21 Court

Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of July 30, 2026 [] Late [X]

None

REPLY: None

filed as of July 30, 2026 [] Late [X]

None

ANALYSIS:

Wicked Good Films LLC sued The Fabulous Group, Inc.

and Kevin T. Van Belois. Fabulous and

Belois failed to respond, so Wicked obtained a default against each of them in

June 2025. Belois now moves to have the

default vacated under Code of Civil Procedure section 473, subdivision (d) because

the default is void for invalid service and lack of personal jurisdiction.[1]

In April 2025, a registered California process

server personally served Belois with copies of the summons, complaint, and

various other case-opening materials at “3513 Glenhurst Ave, Los Angeles, CA

90039.” The server declared that Belois

identified himself as the named defendant, with “identity confirmed by subject

saying yes when named.” The person who

self-identified as Belois appeared to be a 45–55-year-old White man with brown

hair, standing between five-feet-ten-inches and six-feet tall and weighing 160–180

pounds. That person accepted the

documents from the server, whose declaration is prima facie evidence that Wicked effected service on Belois. (Evid. Code, § 647; see *Lee v. Yan* (2025) 115 Cal.App.5th 975, 978.) That places the burden on Belois to offer evidence to the contrary. (*Palm Property Investments, LLC v. Yadegar* (2011) 194 Cal.App.4th 1419, 1428.)

Belois concedes that he resided at the Glenhurst address. He argues, though, that he was not personally served, and that the proof of service describes a person weighing between 160 and 180 pounds. Belois says he weighs “over 240 pounds.”

Belois provides, e.g., no evidence where he was at the time of alleged service if not his residence. Nor does he dispute the rest of the server's description of him. The Court is not persuaded that the server's declaration is false by an averred discrepancy in a defendant's mutable weight, declared over a year after the relevant events. And, unless process servers put people on scales—something likely to subject them to more opprobrium than they already face in their line of work—a person's weight is probably going to be a best-guess. Belois presents no other evidence adequately to rebut the presumption of valid personal service.

Belois also asks the Court to quash Wicked's request for documents or to issue a protective order. Belois cites to no authority and makes little argument on this point. Regardless, a motion to do so would need to be brought separately from the motion to vacate.

Accordingly, the Court DENIES Belois's motion.

Wicked is to give notice.

[1]

The Court notes that Belois references a judgment, but no judgment has been entered against him yet. Belois does mention the date June 30, 2025, which is when default was entered, and thus the Court rules on that default.